

		Defendant shall pay monetary sanctions in the amount of \$2,515 within 45 days of this ruling. ***All lead counsel are ordered to appear for the Ex Parte Application. Refer to ROA 426.*** Plaintiff shall provide notice.
6	Mitchell vs. Deutsche Bank National Trust Company 2022-01265002	1. Demurrer to Amended Complaint 2. Motion for Bifurcation 3. Motion for Judgment on the Pleadings 1. Demurrer to Amended Complaint Defendants Deutsche Bank Trust Company Americas, erroneously named as Deutsche Bank Trust Company America, and Deutsche Bank Americas Holding Corp.'s demurrer to the Second Amended Complaint [SAC] is SUSTAINED in its entirety, with leave to amend, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Moving defendants' request for judicial notice of Ex. A to the Morris Decl. is GRANTED, limited to the fact of recordation, but not the truth of its contents. (Fontenot v. Wells Fargo Bank, N.A. (2011) 198 Cal.App.4th 256, 264-265 [judicial notice of recorded documents]; Poseidon Development, Inc. v. Woodland Lane Estates, LLC (2007) 152 Cal.App.4th 1106, 1117 ["the fact a court may take judicial notice of a recorded deed, or similar document, does not mean it may take judicial notice of factual matters stated therein"].) The remainder of moving parties' request for judicial notice, as well as

		responding parties' request for judicial notice, are DENIED. (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 889 [while judicial notice may be taken of the existence of government websites, "the same is not true of their factual content ... we know of no 'official Web site' provision for judicial notice in California"]; Searles Valley Minerals Operations, Inc. v. State Bd. of Equalization (2008) 160 Cal.App.4th 514, 519 ["although it might be appropriate to take judicial notice of the existence of the websites, the same is not true of their factual content"].) These moving parties were named as Doe defendants. However, the allegations as to Doe defendants (SAC, ¶¶ 6-10), are largely conclusions without supporting facts, which are insufficient. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967 [court "treats the demurrer as admitting all material facts properly pleaded ... [t]he court does not, however, assume the truth of contentions, deductions or conclusions of law"].) While agency allegations are ultimate facts (Skopp v. Weaver (1976) 16 Cal.3d 432, 437), the general agency allegations at ¶ 7 of the SAC are insufficient, in the face of the other extensive factual allegations against named defendants (SAC, ¶¶ 11-33), and the absence of any charging factual allegations against Doe defendants. (Gentry v. Ebay, Inc. (2002) 99 Cal.App.4th 816, 827 [specific factual allegations control over inconsistent general allegations].) Plaintiffs shall file a Third Amended Complaint, if at all, within 10 days. 2. Motion to Bifurcate Defendants / cross-defendants Deutsche Bank National Trust Company, as Trustee for
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		NovaStar Mortgage Funding Trust, Series 2007-1 NovaStar Home Equity Loan Asset-Backed Certificates, Series 2007-1, PHH Mortgage Corporation, and Western Progressive LLC’s motion to bifurcate and try equitable issues first is DENIED, without prejudice. Moving parties have not presented sufficient evidence showing that trying equitable causes of action first will further convenience, avoid prejudice, or be conducive to expedition and economy. (Code Civ. Proc., §§ 597, 598, 1048, subd. (b).) However, the Court will consider revisiting the issue via a Motion In Limine prior to trial, upon a better evidentiary showing by Moving Parties. 3. Motion for Judgment on the Pleadings Cross-complainant George Goubran’s motion for judgment on the pleadings as to the 1st through 7th causes of action in his verified First Amended Cross-complaint [FACC] is DENIED. (Code Civ. Proc., § 438 [authorizing motion]; Engine Manufacturers Assoc. v. State Air Resources Bd. (2014) 231 Cal.App.4th 1022, 1034 [“Motions by a plaintiff for judgment on the pleadings ... are the equivalent of a demurrer to an answer ... the appellate court will assume the truth of all facts properly pleaded in the answer and will disregard the controverted allegations of the complaint ... Such a motion must be denied if the defendant’s pleadings raise a material issue or set up affirmative matter constituting a defense;” internal citations omitted.] Both parties’ requests for judicial notice of various recorded documents pertaining to the subject property are GRANTED, limited to the fact of recordation, but not the truth of their contents. (Fontenot v. Wells Fargo Bank, N.A. (2011) 198 Cal.App.4th 256, 264-265 [judicial notice of recorded documents]; Poseidon Development, Inc. v. Woodland Lane Estates, LLC (2007) 152 Cal.App.4th
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		1106, 1117 [“the fact a court may take judicial notice of a recorded deed, or similar document, does not mean it may take judicial notice of factual matters stated therein”).) Moving defendant’s remaining requests for judicial notice of documents filed in this action is GRANTED, limited to the fact of filing, but not of the truth of their contents. (Evid. Code, § 452, subd. (d)(1) [court records]; In re Vicks (2013) 56 Cal.4th 274, 314 [“while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files;” emphasis in original; internal citation omitted]; Williams v. Wraxall (1995) 33 Cal.App.4th 120, 130, FN 7 [judicial notice of the truth of facts in court documents generally limited to orders, statements of decision, and judgments].) Judgment on the pleadings is DENIED, as the verified Answer to the verified First Amended Cross-complaint states sufficient facts denying moving party’s contention that the March 2014 reconveyance extinguished all rights and obligations under the first loan and deed of trust, on which all of moving party’s claims are based. (Answer, ¶¶ 10-12, 16-17, 19, 22-26, 28-33, 40, 42, 44, 49, 51-54, 57, 62, 65-67, 72, 74, 78, 79, 83-87, 90, 92-93; Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216 [“judgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution”].) Further, whether cross-defendants’ ability to claim any rights under the first loan and deed of trust are barred by laches, waiver, or estoppel are all questions of fact for the trier of fact, and may not be determined as a matter of law unless the facts are undisputed, which is not the case here. (Schabarum v. California Legislature, supra at 1216 [denial of motion upon sufficient allegations of factual disputes]; Estate of Kampen (2011) 201 Cal.App.4th 971, 997 [“the existence of laches is a question of fact to be determined by the trial court in light of all of the
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		applicable circumstances ... [h]owever, the issue may be addressed as one of law if the facts are undisputed"]; In re Campbell (2017) 11 Cal.App.5th 742, 755 ["The issue of a waiver is generally a question of fact"]; Mills v. Forestex Co. (2003) 108 Cal.App.4th 625, 652 ["In the usual case, estoppel is a question of fact to be resolved by the trier of facts ... [h]owever, when the facts are undisputed, the existence of an estoppel is a question of law;" internal citations and quotation marks omitted.) Similarly, whether cross-defendants' ability to claim any rights under the first loan and deed of trust is barred by any applicable statute of limitations, does not "clearly and affirmatively" appear from the face of the pleadings. (Geneva Towers Ltd. Partnership v. City of San Francisco (2003) 29 Cal.4th 769, 781; emphasis added, internal citation omitted.) Plaintiffs shall give notice of all the above.
7	Cruz vs. PAC Auto Group, Inc.	Petition to Confirm Arbitration Award Plaintiffs Anthony Cruz and Veronica Solis Beas's petition/motion to confirm arbitration award is GRANTED, as follows. (See Code Civ. Proc., §§ 1286, 1286.6; see also Pacific Law Group: USA v. Gibson (1992) 6 Cal.App.4th 577, 580 ["Confirmation is mandatory under Code of Civil Procedure section 1286" et seq. unless the court corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding; nothing in these sections limits the confirmation of arbitration awards based on whether the respondent has/has not satisfied its payments obligations under the award].) The Court confirms the arbitration award as made in the final award dated 6/18/26, which adopts and incorporates the interim award

		issued on 4/21/26, and enters judgment pursuant thereto, as follows: (1) As of the issuance of the interim award on 4/21/26, "[t]he contract dated September 20, 2020 ('Contract'), by which Claimants [Anthony Cruz and Veronica Solis Beas] purchased a used 2017 Ford Mustang, CA VIN no. xxxxxxxxxxxxxxxx692 ('Vehicle') from [PAC Auto Group, Inc. (PAC)] and the purchase financing for the Vehicle arranged by PAC are rescinded. Claimants shall have no further obligation to re-pay any monies to [Ally Bank, erroneously sued as "Alley Financial, Inc." (Ally),] or PAC to finance the purchase of the Vehicle, which obligation is extinguished. There shall be no negative credit reporting by PAC or Ally effecting Claimants because of the rescission of the Contract." (Pet. at att. 8(c) [final award, p. 2].) (2) As of the issuance of the interim award on 4/21/26, "Claimants were ordered to make the Vehicle immediately available to PAC for pick-up (costs of pick-up to be borne by PAC).... The Interim Award also provided that prior to pick-up of the Vehicle, PAC was to prepare and Claimants to execute all documents reasonably necessary to transfer ownership of the Vehicle to PAC," and that PAC and Ally "shall pay \$33,886.38 to Claimants within thirty days from the date of th[e] Interim Award." (Pet. at att. 8(c) [interim award, pp. 7, 10-11, see final award, p. 2].) (3) As of the issuance of the interim award on 4/21/26, "[Ford Motor Company (Ford)] was ordered to pay Claimants \$12,445.80 for breach of warranty within thirty days of the Interim Award." (Pet. at att. 8(c) [final award, p. 2].) (4) "Notwithstanding anything to the contrary in the Interim Award, Ally's liability was not to exceed the amount of its investment, \$33,481.73, exclusive of costs and attorney's fees." (Pet. at att. 8(c) [final award, p. 2].) (5) "Claimants are awarded jointly and severally against PAC and Ally \$49,709.00 in attorney's fees." (Pet. at att. 8(c) [final award, p. 6].)
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		(6) "Claimants are awarded jointly and severally against Ford, PAC and Ally \$8,677.07 in costs. As between each other, Ford shall be liable for \$4,338.54 of the costs, PAC shall be liable for \$2,169.27 of the costs, and Ally shall be liable for \$2,169.26 of the costs." (Pet. at att. 8(c) [final award, p. 6].) (7) "The administrative fees of the American Arbitration Association (AAA) totaling \$2500 and the compensation of the Arbitrator totaling \$7030 shall be borne and paid as incurred." (Pet. at att. 8(c) [final award, p. 6].) All remaining terms of the interim award and final award are also confirmed and incorporated into the judgment. Plaintiffs' request for statutory interest on the award pursuant to Civil Code section 3287, subdivision (a) (section 3287(a)) at the rate of 10% per annum is also GRANTED, as follows (see <i>Britz, Inc. v. Alfa-Laval Food & Dairy Co.</i> (1995) 34 Cal.App.4th 1085, 1106-1107; accord, <i>Pierotti v. Torian</i> (2000) 81 Cal.App.4th 17, 27): (1) Interest in the total amount of \$306.24 on the restitution award of \$33,886.38 is granted in favor of plaintiffs, and jointly and severally against PAC and Ally. This amount has been calculated from the date this payment was due on 5/21/26 (30 days after issuance of the interim award on 4/21/26), through the date of the payment on 6/22/26. (See Pet. at att. 8(c) [interim award, pp. 7, 10-11, and final award, p. 2]; Cook Decl. ¶ 6.) (2) Interest at the rate of 10% per annum is granted in favor of plaintiffs on the \$12,445.80 damages award on the breach of implied warranty claim against Ford, from 5/21/26 to the entry of judgment. (See Pet. at att. 8(c) [interim award, pp. 10-11, final award, p. 2]; see also Cook Decl. ¶¶ 6, 8, 9 [Ford has failed to make any payments to date].) Interest at the rate of 10% per annum on \$12,445.80 comes out to a daily rate of \$3.41 (\$12,445.80 x 0.10 percent, divided by 365 days).
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		(3) Interest in the total amount of \$163.44 on the attorney fees portion of the award is granted in favor of plaintiffs, and jointly and severally against PAC and Ally. (See Pet. at att. 8(c) [final award, p. 6]; Britz, supra, 34 Cal.App.4th at p. 1107 [prejudgment interest is available on the entire arbitration award, including attorney fees contained in the award].) This amount has been calculated from 6/25/26, the day after the final award was served on the parties (see Cook Decl. ¶ 7), to the date the fees were paid on 7/6/26 (id. ¶ 8). (4) Interest in the total amount of \$7.08 in favor of plaintiffs and against PAC on PAC's portion of the costs award, calculated from 6/25/26 (day after final award was served), to the date the costs were paid on 7/6/26. (See Pet. at att. 8(c) [final award, p. 6]; Cook Decl. ¶¶ 7-8.) (5) Interest in the total amount of \$7.08 in favor of plaintiffs and against Ally on Ally's portion of the costs award, calculated from 6/25/26 (day after final award was served), to the date the costs were paid on 7/6/26. (See Pet. at att. 8(c) [final award, p. 6]; Cook Decl. ¶¶ 7-8.) (6) Interest at the rate of 10% per annum is granted in favor of plaintiffs and against Ford on Ford's \$4,338.54 portion of the costs award, from 6/25/26 (day after final award was served) to the entry of judgment. (See Pet. at att. 8(c) [final award, p. 6]; Cook Decl. ¶¶ 6, 8, 9 [Ford has failed to make any payments to date].) Interest at the rate of 10% per annum on Ford's \$4,338.54 portion of the costs comes out to a daily rate of \$1.19 ($\\$4,338.54 \times 0.10$ percent, divided by 365 days). Finally, plaintiffs' requests for costs and attorney fees with incurred with respect to the instant petition to confirm arbitration award is GRANTED, as follows: (1) Plaintiffs are granted costs in the amount of \$60 jointly and severally against PAC, Ally, and Ford (see Code Civ. Proc., § 1293.2; Marcus & Millichap Real Estate Investment Brokerage Co. v. Woodman
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		Investment Group (2005) 129 Cal.App.4th 508, 513); and (2) Plaintiffs are granted attorney fees in the amount of \$2,075 jointly and severally against PAC and Ally (see Civ. Code, § 1794, subd. (d). Plaintiffs shall give notice of all of the above and prepare a proposed judgment on the complaint that incorporates all of the foregoing verbatim, within 10 days.
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